

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch (I)	Team: Intake	CCRB Case #: 201401899	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/25/2014 6:40 PM	Location of Incident: Burnside Avenue between Davidson Street and Grand Avenue	Precinct: 46	18 Mo. SOL 8/25/2015	EO SOL 8/25/2015	
Date/Time CV Reported Wed, 02/26/2014 5:04 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 02/26/2014 5:04 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gary Capellan	07470	950154	046 PCT
2. An officer			

Officer(s)	Allegation	Investigator Recommendation
A.POM Gary Capellan	Discourtesy: PO Gary Capellan acted rudely toward § 87(2)(b)	
B. An officer	Discourtesy: An officer acted rudely toward § 87(2)(b)	

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via call processing system on February 27, 2014. He was reached by phone on March 4, 2014, and scheduled for an investigative interview at the CCRB for March 7, 2014. He did not appear for his interview or call ahead to cancel or reschedule. He was contacted at the phone number that he provided in his phone message twice, on March 18, 2014 and on March 25, 2014, but was unavailable both times. A missed appointment letter was sent to him on March 26, 2014, and has not been returned by the U.S. Postal Service as undeliverable as of the writing of this report. On March 31, 2014, a search of the New York State Department of Correction website confirmed that he is not currently incarcerated. A search of the New York City Department of Corrections on April 1, 2014 yielded the same information.

§ 87(2)(g), § 87(2)(b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date